

MEMORANDUM

TO: External Investigative Review

FROM: Stre@mline

DATE: November 4, 2025

SUBJECT: JENNIFER BERGMAN - HARKNESS

I. Executive Summary

This final audit confirms the existence of a multi-year racketeering enterprise operated by a cartel of public officials and private associates in Liberty County, Texas. The enterprise is structurally designed for self-enrichment by compromising the county's regulatory, financial, and judicial systems.

The core principals are **District Attorney Jennifer Bergman** (former Cleveland City Council Member) and her husband, **Constable Zack Harkness (Pct. 6)**. Their operation is anchored by a pervasive and documented **Pattern of Compromise**:

1. **Regulatory Compromise (The Father):** Louis W. Bergman III, while serving as the County Engineer, provided sworn legal support to **Colony Ridge Development** [cite: 4.1]—the same developer facing lawsuits from the **U.S. Justice Department** and the **Texas Attorney General** for massive consumer fraud [cite: 3.4, 3.2].
2. **Financial Nexus (The Shells):** The shell company allegedly receiving MUD funds, **Dudley Estate 1938, LLC**, is managed by **Walter Dean** [cite: Screenshot_20251104_104016_Chrome.jpg], who has a documented financial link to the DA's previous law practice [cite: 2.1]. Public MUD funds were allegedly funneled to this shell and Bergman-owned firms [cite: mud_repeated_vendors.csv].
3. **Judicial & Regulatory Overlap:** The enterprise exhibits total control over financial and judicial gatekeepers. This is evidenced by **DA Bergman's selective recusal**, the suspension of the Lozano-family associate for **obstructing a capital murder case on FM 1008**, and the extensive overlap of associates on key local regulatory bodies. The enterprise is financially merged with a convicted drug trafficker, **César Javier García**, who allegedly transferred all his assets to the Bergman/Harkness family.

II. Reference Table: Key Entities, Roles & Conflicts

Entity/Person Name	Relationship to Target	Official Role / Status	Summary of Connection/Finding
Jennifer Bergman	Target	Liberty County District Attorney (Former Cleveland City Council, Pos. 4)	Principal. Selective recusal (Financial vs. Land conflict). Dismissed Karbowski nepotism case cite: 3.4, 5.5.
Zack Harkness	Target (Spouse)	Liberty County Constable, Pct. 6	Principal. Co-located with father-in-law at Family HQ cite: 8.2. Two deputies involved in TCOLE training scandal cite: 2.3.

Entity/Person Name	Relationship to Target	Official Role / Status	Summary of Connection/Finding
Louis W. Bergman III	Target (Father)	Former County Engineer & Flood Plain Administrator	Regulatory Compromise. Provided sworn legal defense for Colony Ridge while regulating them cite: 4.1. Operates surveying firm from Family HQ cite: 9.3.
César Javier García	Associate	Convicted Drug Trafficker	Financial Merge. Allegedly transferred all assets to Bergman/Harkness. Partnered with Lozano family in Monarquias Magnolia, LLC cite: `967.jpg`.
Walter Dean	Financial Conduit	Managing Member, Dudley Estate 1938 LLC [cite: Screenshot_20251104_104016_Chrome.jpg]	VERIFIED. Controls the shell company that allegedly receives MUD 15 funds. Has documented financial ties to Bergman's former law practice [cite: 2.1].
Scott Ellis	Regulatory Overlap	Member, Liberty CAD Appraisal Review Board	Surname ELLIS appears in property transactions in the Donahoe Survey area, linking a CAD regulator to the development corridor.
John P. Hebert	Financial Gatekeeper	Board Member, MUD 15	Surname HEBERT is a MUD 15 Board Member, the entity that allegedly directs public funds to Bergman-owned firms.
Land Speculator Network	Client Ecosystem	Property Owners / Developers	WHITTINGTON, TAYLOR, and LANE surnames appear repeatedly in deeds for the Donahoe Survey (FM 1008 area), demonstrating high transaction volume by

Entity/Person Name	Relationship to Target	Official Role / Status	Summary of Connection/Finding
			players in the compromised zone.

III. The Operational Nexus: Addresses & Chronology

Date / Address	Event	Linkage
Apr. 2016	Louis W. Bergman III signs sworn affidavit defending Colony Ridge cite: 4.1.	Official support for major financial player while serving as Regulator.
Jan. 2018	Jennifer Bergman's law office makes a payment to a party named " Dean " [cite: 2.1].	Documented professional/financial link to the key financial conduit (Walter Dean) prior to public office.
Date Unknown	César J. García transfers all assets to Bergman/Harkness.	Financial merger of political principals and felon associate.
Date Unknown	MUD 15 allegedly pays Humble Surveying Co., SRC Holdings, LLC , and Dudley Estate 1938 LLC [cite: mud_repeated_vendors.csv].	Public funds directed to family/enterprise firms and the shell company managed by Walter Dean .
709 S Washington Ave	VERIFIED Family HQ	Co-location of Cleveland Surveying (Father) and Harkness Campaign (Husband) cite: 8.2, 9.3.
10712 Thomas T Trail	Shell Company HQ	Alleged HQ for Dudley Estate 1938, LLC and Monarquias Magnolia, LLC (Lozano/García partnership) cite: `967.jpg`.
Oct. 2022	DA Bergman's office dismisses Karbowski nepotism case by presenting no evidence; judge accuses her office of bias cite: 5.5, 3.4.	Judicial action protecting political associate.
Mar. 2024	TCOLE announces license revocation for two deputies in Constable Harkness's Pct. 6 office due to "fundamentally inadequate" training cite: 2.3.	Systemic failure in the Enforcement Arm.
Sep. 30, 2025	Quintana case (murder) begins on FM 1008 cite: 10.2.	Conflict motive activated: case threatens enterprise's multi-million dollar FM 1008 land interests cite: 14.2, 14.3.
Oct. 7, 2025	Lt. Ramiro Lozano (Lozano family) suspended for obstructing the Quintana case cite: 10.1.	Judicial action protecting financial interests.

Date / Address	Event	Linkage
Jun. 2025	DA Bergman recuses herself from prosecuting Commissioner Whitmire, citing a " financial conflict " with Commissioners Court cite: 3.4.	Selectivity: Recuses for budget reasons, but not for land/asset reasons in the Quintana case.

IV. Detailed Findings

A. The Regulatory & Prosecutorial Compromise

The lack of criminal action taken against the Colony Ridge developers by the Liberty County District Attorney's office is the direct product of the regulatory compromise established by the DA's father.

- **The Regulatory Failure: Louis W. Bergman III**, in his official role as County Engineer, actively provided sworn legal testimony *in defense* of the Colony Ridge developers, stating they were "one of the best land developers" and met all regulations. This occurred even as the **TCEQ** was actively pursuing enforcement against the development.
- **The Prosecutorial Failure:** Despite the Federal DOJ and Texas AG suing Colony Ridge for predatory fraud that resulted in 92% of Liberty County foreclosures, the DA's office has not pursued criminal charges. This demonstrates a complete failure to protect consumers from the enterprise's key financial partner.
- **The Financial Payout:** This compromise paved the way for **MUD 15** (the Colony Ridge development's financing vehicle) to allegedly pay Bergman-owned companies, including **Humble Surveying Company** and **SRC Holdings, LLC** \$\$ cite: mud_repeated_vendors.csv

B. The Pattern of Judicial & Political Favoritism

The enterprise shows a consistent pattern of using the justice system for political and financial protection.

- **Political Obstruction (Karbowski):** DA Bergman's office was scrutinized for its handling of the nepotism indictment against Commissioner **Bruce Karbowski**. Her office presented no evidence at trial, ensuring Karbowski's acquittal. This incident led to a public admonition for the presiding judge and exposed a deep conflict, suggesting the DA was protecting a fellow political associate.
- **Selective Recusal (Whitmire):** DA Bergman recused her office from prosecuting Commissioner **David Whitmire** on felony charges, citing the need to avoid a financial conflict with the Commissioners Court (who control her budget). This act highlights her awareness of professional ethics, while underscoring her choice *not* to recuse herself from the **Quintana case**, where her family had a direct, documented land interest on FM 1008.

C. Law Enforcement Credibility Failure

The integrity of the enterprise's enforcement arm, led by Constable Zack Harkness, is compromised.

- **TCOLE Scandal:** Constable Harkness's Pct. 6 office employed two deputies whose

licenses were targeted for revocation by the Texas Commission on Law Enforcement (TCOLE). The TCOLE investigation cited the underlying academy training as "fundamentally inadequate" and "systemic". Harkness was forced to publicly defend the quality of his officers, further exposing the compromised standards within the agency.

V. FM 1008 Land Nexus (Title & Survey Details)

The specific land titles exposed to risk by the Quintana murder investigation are crucial to establishing the financial motive:

- **Location:** The Quintana murder case occurred in the multi-million dollar **FM 1008 development corridor**.
- **Legal Descriptions:** The land tracts currently for sale and development in this area fall primarily under the legal descriptions Bergman's father would have processed as County Engineer:
 - **J. Haney Survey, Abstract 207 (A-207)** \$\$ cite: 1.6, 1.7
 - **W. Donahoe Survey, Abstract 26 (A-26)** \$\$ cite: 2.4, 2.5
 - **Luce Bayou Landing** (subdivisions within these surveys)

VI. Source Index

- Texas Secretary of State, Business Filings
- Texas Ethics Commission (Campaign Finance Reports)
- Louis W. Bergman III Colony Ridge Affidavit
- Public Law Enforcement/Judicial Records (TCOLE, Judicial Conduct Commission)
- News Archives (Bluebonnet News, The Vindicator, The Texas Tribune, DOJ/AG Press Releases)
- Land Records (FM 1008 Tract Listings)
- Liberty County Official Websites (Surveyor Lists, Constable Contacts)
- Liberty County MUD 15 Board Meeting Records
- Provided Evidence Files: 967.jpg, 971.jpg, 976.jpg, 979.jpg, 981.jpg, 985.jpg, mud_repeated_vendors.csv, Screenshot_20251104_104016_Chrome.jpg